



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 6651
(SEVENTH REVISION)

MAY 2 1996

1. Park Metallurgical Corporation, Detroit, MI is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain Class 6.1 materials for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes one-time reuse of the involved single-trip containers and provides no relief from any regulation other than as specifically stated. NOTE: Reference to 49 CFR Sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Park Metallurgical Corporation's application dated March 18, 1996 submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Sodium cyanide, Sodium cyanide mixtures and Cyanides, inorganic, n.o.s., all Class 6.1.

4. PROPER SHIPPING NAME (49 CFR 172.101). Sodium cyanide mixtures UN 1689; Sodium cyanide UN 1689; cyanides, inorganic, n.o.s. UN 1588, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.28(h) and (M).

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES.

a. Packagings prescribed are DOT Specification 37A metal drums of 15 gallon or 30 gallon capacity containing not more than 100 pounds or 200 pounds net weight, respectively.

b. Each drum is authorized for shipment only one-time after its initial shipment, subject to the following conditions:

1. Drums must be qualified for reuse in accordance with §173.28(m) except for subparagraph (2) and (3) thereof.
2. Drums must be as efficient as new drums and meet the conditions specified in §173.28(a).
3. Shipments are limited to a destination no more than 800 miles from point of origin.

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8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Packages shipped under provisions of this exemption must be marked "DOT-E 6651".

c. This exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provision of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq.

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.11. EXPIRATION DATE. September 30, 1996.

Issued at Washington, D.C.:

for Marilyn J. Morris

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 2 1996

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, DC 20590. Attention DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA.